

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Chief Judge Edward W. Nottingham

Nel Steffens, Deputy Clerk
Therese Lindblom, Court Reporter

Date: November 5, 2007

Civil Action No. 06-cv-01016-EWN-CBS

Parties:

Counsel:

ARTHUR JAMES LOMAX,

Pro Se

Plaintiff,

v.

SGT. PENSON,

Thomas Bigler

Defendant.

TRIAL MINUTES

Trial to Jury - Day One

8:56 a.m. Court in session.

Appearances of counsel.

Jury panel is not present.

Discussion regarding actual incident at issue and how this matter will proceed.

9:08 a.m. Court in recess.

9:13 a.m. Court in session.

Jury panel present.

Eighteen jurors called.

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9:20 a.m. Civil voir dire oath given to jury panel. Voir dire by court commences.

9:29 a.m. Plaintiff Lomax introduces himself..

9:30 a.m. Mr. Bigler introduces Defendant Penson and lists witnesses.

9:31 a.m. Continued voir dire.

Challenges for Cause by Court:

1. #100121067

Peremptory Challenges by Plaintiff:

1. #100141097
2. #100149844
3. #100132839

Peremptory Challenges by Defendant:

1. #100129267
2. #100160361
3. #100127041

10:26 a.m. Criminal jury oath given.

Twelve Jurors Sworn to Try the Case:

1. #100137947
2. #100135550
3. #100139261
4. #100157005
5. #100145516
6. #100145672
7. #100121025
8. #100143628
9. #100150572
10. #100139962
11. #100137879
12. #100139624

10:28 a.m. Court in recess.

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10:54 a.m. Court in session.

Jury is present.

Court gives jury preliminary instructions.

11:14 a.m. Plaintiff's opening statement by Plaintiff Lomax.

11:16 a.m. Defendant's opening statement by Mr. Bigler.

11:28 a.m. Plaintiff Lomax is sworn and testifies on his own behalf.

Exhibit Identified: 1

Exhibit Received: 1

11:36 a.m. Cross examination by Mr. Bigler.

12:03 p.m. Court in recess.

1:20 p.m. Court in session.

Jury is present.

Continued cross examination of Plaintiff Lomax by Mr. Bigler.

1:43 p.m. Witness, Plaintiff Lomax, is excused.

1:44 p.m. Plaintiff rests.

1:45 p.m. Defendant, Craig Penson, called and sworn.

Direct examination by Mr. Bigler.

2:09 p.m. Cross examination by Plaintiff Lomax.

2:12 p.m. Witness is excused.

2:13 p.m. Defendant's witness, Andrew Cross, called and sworn.

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Direct examination by Mr. Bigler.

2:36 p.m. Cross examination by Plaintiff Lomax.

2:39 p.m. Witness is excused.

2:40 p.m. Defendant's witness, James Moore, called and sworn.

Direct examination by Mr. Bigler.

Exhibit Identified: A-3

Exhibit Received: A-3

2:59 p.m. Cross examination by Plaintiff Lomax.

3:02 p.m. Re-direct examination by Mr. Bigler.

3:05 p.m. Witness is excused.

3:05 p.m. Court in recess.

3:34 p.m. Court in session.

3:35 p.m. Defendant's witness, Julia Humphrey, called and sworn.

Direct examination by Mr. Bigler.

3:43 p.m. Cross examination by Plaintiff Lomax.

3:44 p.m. Witness is excused.

Defendant rests.

3:45 p.m. Court instructs jury regarding admonitions of trial.

Trial will resume tomorrow at 9:30 a.m.

3:48 p.m. Jury is excused for the day.

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Discussion regarding jury instructions. Court directs clerk to hand out instructions to parties and also to file them.

Court directs Mr. Bigler to submit a revised verdict form.

Mr. Bigler orally moves for claims against Defendant Penson to be dismissed.

ORDERED: Defendant's oral motion to dismiss claims against Defendant Penson is DENIED.

3:57 p.m. Court in recess.

Trial continued.

Total time: 04:22